Annexure - 5 Letter of Undertaking

(Undertaking shall be submitted on the Letter head of the BIDDER and shall be signed by the Authorised Signatory)

Chennai, 17/08/2026

To
The Managing Director,
Electronics Corporation of Tamil Nadu Ltd,
9th Floor, Sigapi Aachi Building,
18/3, Rukmani Lakshmipathi Road, Egmore, Chennai – 600008.

Dear Sir,

Sub:	Tender for Empanelment of Managed Service Providers (MSP) to provide Cloud services from MeitY empaneled CSPs
Ref:	1. E-ANGADI-ST-SDC-2026-0034

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We, **M/s Iliosdigital Private Limited** , having our registered office at **ANEJAS TOWER, Plot No. 4 & 5, 6th Floor, B-Block, Developed Plot Estate, Perungudi, Chennai - 600 096**, hereby declare that we have carefully read, fully understood, and examined the entire Tender Document including the Notice Inviting Tender (NIT), Instructions to Bidders, Terms and Conditions, Scope of Work, Technical Specifications, Technical Bid, and Price Bid, and we unconditionally agree to comply with and abide by the same.

I/We further undertake and declare as under:

A. Compliance with GFR Rule – Countries Sharing Land Border with India

I/We hereby certify that:

(a) I/We are not from any country sharing a land border with India, or, if from such a country, are duly registered with the Competent Authority as notified by the Government of India, in accordance with General Financial Rules (GFR), 2017, as amended from time to time.
(b) In the event of being declared a successful bidder, I/We shall not subcontract or engage any contractor, supplier, or service provider from a country sharing a land border with India, unless such contractor is duly registered with the Competent Authority, as defined in Annexure–4 of the Tender Document.
(c) I/We understand that any violation of this declaration shall result in rejection of our bid and/or termination of contract, in addition to other actions permissible under law.

B. Declaration Regarding Blacklisting / Debarment

I/We hereby solemnly declare and confirm that:

(a) Neither I/We nor any of our OEMs have been blacklisted, debarred, or declared ineligible for corrupt,

fraudulent, or unethical practices by any State Government, Central Government, Public Sector Undertaking, Statutory Board, or Local Body during the last three (3) years preceding the date of submission of this bid.

(b) In the event of any information or declaration furnished herein being found to be false, misleading, or suppressed, ELCOT shall have the right to reject the bid or terminate the contract forthwith without any compensation, in addition to initiating appropriate legal or penal action.

C. Declaration of No Conflict of Interest

(a) I/We hereby declare that there exists no actual, potential, or perceived conflict of interest on our part arising out of any past, present, or proposed contracts, engagements, or affiliations with any Department, Agency, or Organization of the State Government.
(b) I/We undertake to immediately disclose any conflict of interest that may arise during the execution of the contract.
(c) I/We agree to indemnify and hold harmless ELCOT and/or the End User against all losses, damages, claims, costs, expenses, and liabilities (including reasonable legal and professional fees on a reimbursement basis) arising out of any such conflict of interest.

D. Local Office in Chennai

I/We hereby confirm that:

We have a functional local office in Chennai at the following address: **ANEJAS TOWER, Plot No. 4 & 5, 6th Floor, B-Block, Developed Plot Estate, Perungudi, Chennai - 600 096**

OR

~~We undertake to establish a functional local office in Chennai within thirty (30) calendar days from the date of issue of Letter of Award (LoA).~~

I/We understand and agree that failure to comply with this requirement, or furnishing false or misleading information, shall entitle ELCOT to reject the bid or terminate the contract forthwith without notice or compensation.

E. Compliance with E-Waste (Management) Rules

I/We hereby undertake and confirm that:

(a) The OEM/Producer/Importer of the IT hardware offered under this Tender holds a valid Extended Producer Responsibility (EPR) Registration/Authorisation under the E-Waste (Management) Rules, 2016, as amended, and the E-Waste (Management) Rules, 2022.
(b) A copy of the valid EPR Registration issued by the Central Pollution Control Board (CPCB) or the competent authority has been enclosed.
(c) I/We undertake to ensure collection, take-back, and environmentally sound disposal of the supplied products within Tamil Nadu, in accordance with CPCB/TNPCB guidelines, and to extend full support to ELCOT and its clients at the end of product life.

F. General Compliance with Tender Conditions

I/We hereby declare and certify that:

(a) Our Company has not been blacklisted or debarred by any State Government, Central Government, or Public Sector Undertaking during the last three (3) years.
(b) Our Earnest Money Deposit (EMD) / Security Deposit (SD) has not been forfeited by any Government authority or PSU during the last three (3) years due to non-performance or non-compliance.

(c) All information, statements, and documents furnished by us in this Tender are true, correct, and complete to the best of our knowledge and belief.

(d) The Year of Manufacture of all products supplied under this Tender shall be 2025 or later, and no refurbished or reconditioned components shall be supplied.
(e) All operating systems and software licenses supplied under this contract shall be genuine, valid, and legally licensed.
(f) I/We shall be solely responsible and liable for any disputes arising out of Intellectual Property Rights (IPR) infringement.
(g) I/We confirm that we fulfil all eligibility criteria and requirements specified in this Tender and are eligible to be considered for award of contract.

G. Consequences of False Declaration

I/We understand and agree that in the event of violation of any of the above declarations or undertakings, ELCOT shall be entitled to take action under the Tamil Nadu Transparency in Tenders Act, 1998 and Rules made there under, including blacklisting/debarment for a period up to three (3) years, apart from termination of contract and other remedies available under law.

For Iliosdigital Private Limited,



Authorized Signatory
Dharanidharan M
Director
Info@ilios.digital
+ 91 7058988214
Date: 17/08/2026
Place: Chennai